

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: September 21, 2026 at 1:30 pm

Rulings Posted: 9/18/26 at 3pm

#	Case Name	Tentative
201	<i>Medrano vs. Department of Motor Vehicles</i>	The motion for summary judgment or, in the alternative, summary adjudication filed by defendant Department of Motor Vehicles (Defendant) directed to the complaint of plaintiff Sharon Medrano (Plaintiff) is DENIED as to the second and fourth through seventh causes of action and GRANTED as to the third cause of action. Defendant’s evidentiary objection numbers 16, 17, 23, and 24 are OVERRULED. The court declines to rule on the remaining objections as not material to the disposition of the motion. (Code Civ. Proc., § 437c(q).)

The court notes per Defendant's reply, Defendant withdraws issue no. 18 in the notice of motion.

Second Cause of Action for Disability Discrimination

The elements of a FEHA disability discrimination claim are: (1) plaintiff suffered from a disability or was regarded as suffering from a disability; (2) she could perform the essential duties of the job with or without reasonable accommodations; and (3) she was subjected to an adverse employment action because of the disability or perceived disability. (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143, 159-160.)

Defendant contends Plaintiff cannot show a qualified disability because she was unable to perform the essential duty of working eight hours per day for her job. However, Defendant's own evidence shows a triable issue exists as to whether working eight hours per day is an essential function of Plaintiff's job. Between July 2020 and March 2023, Defendant sent multiple letters to Plaintiff confirming her work restrictions and modified work schedule. Defendant's letters dated July 14, 2020 to April 1, 2022, all stated as follows, in reference to Plaintiff's modified 6-hour per week work schedule: "The above temporary modified work schedule does not preclude you from performing the essential duties of a Motor Vehicle Representative and you are able to perform your usual and customary duties at this time." (Defendant's Compendium of Evidence [COE], Exhibits 30, 32, 35, 37, 40, 43, 45, 47, 49, 50, 51, 55, 57, 67, 68, 70.) Similarly, Defendant's letters to Plaintiff from October 26, 2022 to March 1, 2023, all stated as follows, in reference to Plaintiff's modified 6-hour per week work schedule: "These limitations do not preclude you from performing the essential functions of a Motor Vehicle Representative..." (Defendant's COE, Exhibits 82, 83, 85, 87.)

Defendant makes no argument and offers no evidence showing Plaintiff was unable to perform any specific job tasks due to her claimed disability. Nor does Defendant

argue Plaintiff's 6-hour shift disrupted DMV operations or imposed an undue burden on Defendant.

The only "essential function" identified by Defendant that Plaintiff was unable to perform is working an 8-hour shift. Given Defendant's own evidence shows a triable issue exists as to whether working eight hours was indeed an essential function of Plaintiff's job, Defendant failed to meet its initial burden on this issue.

Defendants' arguments Plaintiff did not suffer a cognizable adverse employment action and failed to exhaust administrative remedies pertain to Plaintiff's allegations she was reprimanded by her manager for adhering to her work restrictions. Because Defendant failed to establish summary adjudication is warranted as to Plaintiff's claim of discrimination based on her demotion, the court need not reach Defendant's argument pertaining to Plaintiff's claim of discrimination based on the reprimands. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action..." (Code Civ. Proc., § 437c(f)(1).)

The motion as to the second cause of action is **DENIED**.

Third Cause of Action for Harassment

Plaintiff alleges she was harassed on the basis of disability when she was demoted and when she was subjected to reprimands by supervisors and office managers "for taking her reasonable accommodations due to her disabilities." (Compl., ¶¶ 42-43, 66, 70-71.)

Defendant is correct these allegations of personnel management actions do not constitute actionable harassment under FEHA. (See *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 870 ["[T]he Legislature intended that commonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the

provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment.”]; see also, *Doe v. Department of Corrections and Rehabilitation* (2019) 43 Cal.App.5th 721, 737, emphasis in original [“[H]arassment claims are based on a type of conduct that is *avoidable* and *unnecessary* to job performance...Making personnel decisions is an inherent and unavoidable part of the supervisory function.”].)

Plaintiff failed to raise a triable issue as to whether she was subjected to actionable harassment under FEHA. The only evidence offered by Plaintiff on this point is her declaration in which she reiterates her allegations in the complaint that she was reprimanded once in 2022 for walking around the office and written up “on several occasions” for being late. (Medrano Decl., ¶¶ 16-19.) Plaintiff then states generally that after she complained about what she believed was unfair treatment (she does not identify who she complained to or when she complained), “there was no change in reprimands, monitoring, write-ups, schedule changes, hostile comments, or other treatment” and “[i]n fact, the harassment increased.” (Medrano Decl., ¶¶ 20-22.) She fails to specify what other “reprimands, monitoring, write-ups, schedule changes, hostile comments, or other treatment” she experienced. This is insufficient to raise a triable issue of material fact. Declarations submitted on a motion for summary judgment must state evidentiary facts. Conclusions of fact or law are not sufficient. (*Hayman v. Block* (1986) 176 Cal.App.3d 629, 639; *Tuchscher Develop. Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1240.) *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, cited by Plaintiff, is distinguishable because, as Defendant explains in the Reply, *Roby* involved a pattern of personnel decisions mixed with interpersonal conduct that conveyed a message contributing to a hostile work environment. (*Roby*, supra, 47 Cal.4th at pp. 695, 709.) Here, by contrast, there is no evidence of any conduct by Defendant that reasonably could be interpreted as communicating a hostile message.

The motion as to the third cause of action is **GRANTED**.

Fourth Cause of Action for Retaliation

Plaintiff's retaliation claim is based on Government Code section 12940, subdivision (h), which makes it unlawful for an employer to retaliate against an employee "because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Govt. Code, §12940(h); see also, Compl., ¶ 79.)

This cause of action alleges Plaintiff engaged in protected activity by adhering to her reasonable accommodations for her disability. (See Compl., ¶ 80.) Plaintiff also alleged employees are reprimanded by managers when they are adhering to their doctor-prescribed work-place restrictions, Plaintiff reported "these disparate treatments to her supervisor and office manager," and "Plaintiff experienced retaliation in the form of increase in reprimands." (See Compl., ¶¶ 40-41.)

Defendant is correct that simply adhering to one's own work restrictions, without more, does not constitute protected activity. (See *Miller v. Department of Corrections and Rehabilitation* (2024) 105 Cal.App.5th 261, 285-286 [being disabled "does not constitute protected activity under either of the retaliation provisions in the FEHA"].)

However, Defendant failed to meet its initial burden of establishing the nonexistence of a triable issue of fact as to whether Plaintiff engaged in protected activity based on the allegation she complained to her supervisor. On this point, Defendant summarily argues "to the extent Medrano tries to add to her claim by alleging that she had complained to her supervisor, the retaliation claim still fails because Medrano will not be able to explain how her complaint might be construed as opposition to a prohibited employment practice." (Motion at p. 20:5-8.) Defendant fails to offer any reasoned argument as to why Plaintiff will not be able to do so. Defendant also fails to point to any

evidence to support this argument. Further, although Defendant cites *Dinslage v. City and County of San Francisco* (2016) 5 Cal.App.5th 368, 382-384, Defendant offers no explanation as to how this case supports its position. Points that are raised that are not supported by reasoned argument or citations to authority may be disregarded. (*City of Palo Alto v. Public Employment Relations Board* (2016) 5 Cal.App.5th 1271, 1318; *Needelman v. DeWolf Realty Co., Inc.* (2015) 239 Cal.App.4th 750, 762.)

Given Defendant's failure to point to any evidence to support its contention and in the absence of a more developed argument on this issue, Defendant failed to show, as a matter of law, Plaintiff's complaints to her supervisors cannot constitute protected activity. Defendant also argues the allegations Plaintiff was reprimanded cannot support the retaliation claim because Plaintiff "neither administratively exhausted this alleged adverse employment action..., nor can she show how those reprimands materially changed the terms or conditions of her employment." (Motion at p. 20:20-23.)

As to the first point, as Defendant acknowledges, the exhaustion requirement is satisfied for other alleged conduct that is "like and reasonably related to" the conduct specified in the administrative complaint or "likely to be uncovered in the course of a [CRD] investigation." (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143, 154; *Okoli v. Lockhead Technical Operations Co.* (1995) 36 Cal.App.4th 1607, 1617.)

Here, Plaintiff's CRD complaint alleges broad claims of discrimination and retaliation based on demotion, denial of employment benefits and privileges, and other conduct. (See Defendant's COE, Exhibit 115.) That Plaintiff was reprimanded as a form of retaliation would appear to be a claim reasonably related to and likely to be uncovered during the course of a CRD investigation into Plaintiff's claim of retaliation. None of Defendant's cited authorities supports its contention that such claims cannot be

reasonably related to a CRD complaint alleging broad claims of retaliation.

As to the second point, Defendant entirely failed to meet its initial burden. Defendant simply argues there is no evidence the reprimands Plaintiff purportedly received from her manager resulted in any material change to the terms and conditions of her employment. (See Motion at p. 17:2-5; 20:22-23.) However, Defendant cannot meet its burden by simply arguing Plaintiff has no evidence to support her claim. Rather, Defendant must prove Plaintiff lacks evidence. Defendant does so by presenting evidence that Plaintiff “does not possess and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854; see also, Code Civ. Proc., § 437c(p)(2).) Here, Defendant failed to present any evidence sufficient to establish Plaintiff does not possess and cannot reasonably obtain needed evidence to establish the reprimands materially changed the terms and conditions of her employment and thus constituted an adverse employment action.

Defendant’s argument pertaining to the lack of causal connection is directed to only part of the cause of action, i.e., to Plaintiff’s allegation she was demoted, and is therefore not a basis for summary adjudication. (See Code Civ. Proc., § 437c(f)(1).)

The motion as to the fourth cause of action is **DENIED**.

Fifth Cause of Action for Failure to Accommodate and Seventh Cause of Action for Failure to Engage in the Interactive Process

Defendant argues Plaintiff failed to administratively exhaust her failure to accommodate and failure to engage in the interactive process claims. As discussed above, Plaintiff’s CRD complaint alleges broad claims of discrimination including disability discrimination. Claims of failure to accommodate a disability and failure to engage in the interactive process regarding a disability would

appear to be reasonably related to claims of disability discrimination and likely to be uncovered in the course of a CRD investigation into said claim. Defendant cites no authority holding claims for failure to accommodate and engage in the interactive process are outside the scope of a CRD complaint alleging disability discrimination.

Defendant also argues Plaintiff cannot establish her failure to accommodate claim because after determining Plaintiff was unable to perform the essential function of working full-time, Defendant reasonably accommodated Plaintiff's disability by demoting her to a part-time position in which she was able to fully perform. Given a triable issue exists as to the underlying premise of Defendant's argument – i.e., whether working eight hours per day is an essential function of Plaintiff's job – a triable issue of fact also necessarily exists as to whether Defendant reasonably accommodated Plaintiff when it demoted her. Because a triable issue exists as discussed above, the court need not reach Defendant's argument that asking not to be reprimanded is not a cognizable form of reasonable accommodation. (Code Civ. Proc., § 437c(f)(1).)

Regarding Plaintiff's claim for failure to engage in the interactive process, Defendant argues Plaintiff cannot prove this claim because Defendant reasonably accommodated Plaintiff when it allowed her to work less than eight hours per day from July 2019 to May 2023 and when it demoted her in May 2023. Given a triable issue exists as to whether Defendant reasonably accommodated Plaintiff when it demoted her, Defendant's argument in this regard fails.

Defendant also argues Plaintiff cannot identify a reasonable accommodation that would have been available if the interactive process had been properly engaged. This argument relies on Defendant's assertion Plaintiff could not perform the essential job function of working full-time. (See Motion at p. 24:24-25:3.) Given a triable issue exists as to whether working eight hours per day is an essential

function of Plaintiff's job, Defendant's argument in this regard also fails.

Lastly, Defendant argues Plaintiff cannot establish her interactive process claim because Plaintiff did not respond to Defendant's March 2023 letter advising her of Defendant's intention to demote her and she, therefore, effectively caused any breakdown of the interactive process. (See UMF 14-19; see also *Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 263 [employer can prevail on interactive process claim if "the informal interactive process broke down because the employee failed to engage in discussions in good faith"].)

A triable issue exists as to the threshold issue of whether Defendant engaged in a good faith, interactive process with Plaintiff by sending her the March 2023 letter. Defendant offered no evidence showing any other attempts to engage in the interactive process. For instance, Defendant offered no evidence showing it spoke with or met with Plaintiff to discuss the six-hour workday accommodation prior to or after sending the March 2023 letter. Indeed, Plaintiff attests before receiving the March 2023 letter, no one from Defendant met with or spoke with her regarding whether her existing six-hour schedule would allow her to keep performing her job duties and no one discussed with her whether other reasonable accommodations would allow her to remain in her current position. (Medrano Decl., ¶¶ 24-25, 32.) She also declares no one from Defendant contacted her after the March 2023 letter to discuss whether her existing schedule could be continued. (Medrano Decl., ¶¶ 32-33.)

Under the foregoing circumstances, it cannot be said, as a matter of law, Defendant engaged in a good faith, interactive process simply by sending the March 2023 letter to Plaintiff. (See *Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 972 [FEHA requires employer to engage in an ongoing dialogue regarding the accommodations requested].)

		The motion as to the fifth and seventh causes of action is DENIED. <u>Sixth Cause of Action for Failure to Prevent Discrimination, Harassment, and Retaliation</u> Defendant contends the failure to prevent discrimination, harassment, and retaliation claim fails as a matter of law because (1) Plaintiff has no actionable claim for disability discrimination, harassment or retaliation; and (2) Plaintiff failed to exhaust her administrative remedies on her failure to prevent claim. The first argument fails as the disability discrimination and retaliation claims remain viable. The second argument also fails. As discussed above, Plaintiff's CRD complaint alleges broad claims of discrimination and retaliation. Claims of failure to prevent discrimination and retaliation would appear to be reasonably related to said conduct and likely to be uncovered in the course of a CRD investigation. (<i>Wills</i>, supra, 195 Cal.App.4th at 15; <i>Okoli</i>, supra, 36 Cal.App.4th at 1617.) Defendant points to no authority holding a claim for failure to prevent discrimination and retaliation is outside the scope of a CRD complaint alleging discrimination and retaliation. The motion as to the sixth cause of action is DENIED. Plaintiff shall give notice.
205	<i>Kim vs. Longo</i>	Plaintiff Philip Kim's demurrer to the answer is SUSTAINED, in part, and OVERRULED in part, and Plaintiff's motion to strike is GRANTED in part and DENIED in part. Defendants Jason Longo, Thirtyone Labs, LLC and TBH Supply, LLC shall have leave to file and serve an amended answer within 10 days.

Demurrer

1st, 7th, 8th, 9th, 12th and 14th affirmative defenses:

These affirmative defenses are uncertain, ambiguous and unintelligible in light of the allegations and causes of action pled in Plaintiff's complaint. (See Code of Civ. Proc. § 430.20, subd. (b); *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 [evaluation of an answer requires examination of the complaint].) The demurrer is SUSTAINED as to these affirmative defenses.

2nd, 6th, 13th, 15th, 16th affirmative defenses: The answer fails to state facts sufficient to constitute these affirmative defenses and does not give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *In re Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-13 [standard]; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50.) The demurrer is SUSTAINED as to these affirmative defenses.

3rd, 4th, 10th, 11th and 17th affirmative defenses: While these affirmative defenses do not assert any new matter and merely negate the elements of Plaintiff's claims, Plaintiff fails to explain why or how these allegations prejudice Plaintiff. (See Code of Civ. Proc. § 452 [allegations in pleading are liberally construed], § 475 [minor pleading defects that do not affect the substantial rights of the parties are ignored].) The demurrer is OVERRULED as to these affirmative defenses.

5th affirmative defense: Defendants identify the applicable code sections but do not identify the subdivisions. (See Code of Civ. Proc. § 458.) The demurrer is SUSTAINED as to this affirmative defense.

18th, 19th, 20th and 21st affirmative defenses: These affirmative defenses are appropriate in light of the allegations and causes of action pled by Plaintiff and give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *South Shore Land Co. v. Petersen, supra*, 226 Cal.App.2d at 732; *Doe v. City of Los Angeles, supra*, 42

Cal.4th at 549-50.) The demurrer is OVERRULED as to these affirmative defenses.

Motion to Strike

Reservation of rights language: This language is mere surplusage, but Plaintiff fails to explain why or how these allegations prejudice Plaintiff. (See Code of Civ. Proc. §§ 436, 452, 475.) The motion is DENIED as to this portion of the answer.

Prayer for attorney fees and expert witness fees:

“Affirmative relief may not be claimed in the answer.”
(Code of Civ. Proc. § 431.30, subd. (c).) Entitlement to attorney fees and/or expert witness fees may be claimed post-judgment. (Cal. Rules of Court, rules 3.1700, 3.1702.)
The motion is GRANTED as to the prayer for relief.

Plaintiff shall give notice.